

****December 23, 2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in December 2024, an investigation into the operator Fan Courier Express S.R.L. and found a violation of the provisions of Article 12 paragraphs (2), (3), and (4) in relation to the provisions of Article 15 paragraph (3) of Regulation (EU) 2016/679.

As such, the operator was sanctioned with a fine of 9,954 lei, equivalent to the amount of 2,000 Euros. The investigation was initiated following a complaint submitted by an employee who reported a possible violation of Regulation (EU) 2016/679, due to the lack of an adequate and complete response from the operator to the request through which they exercised their right of access.

During the investigation, it was found that the operator Fan Courier Express S.R.L. failed to provide the data subject with a copy of their personal data, as they correctly requested in the application sent electronically to the operator's address, in relation to the provisions of Article 15 paragraph (3) of the GDPR.

It was found that the operator delayed the resolution of the data subject's request by directing it to another internal department, asking them to submit a new request at another location of the operator. Additionally, it was found that the operator's record system contained the email address associated with the data subject for communications.

Consequently, it was determined that the operator Fan Courier Express S.R.L. did not properly respect the access right of the petitioner, violating the provisions of Article 12 paragraphs (2), (3), and (4) in relation to Article 15 paragraph (3) of Regulation (EU) 2016/679 and was sanctioned with a fine.

Furthermore, corrective measures were imposed on the operator:

- to send a complete response to the petitioner's request via email, by securely communicating a copy of their personal data from the operator's record system;
- to ensure compliance with Regulation (EU) 2016/679 in the processing operations of personal data, by adopting the necessary technical and organizational measures, including proper training of the designated personnel for this purpose, so that the operator is capable of analyzing, correctly resolving, and appropriately responding to requests through which data subjects exercise their rights.

****Legal and Communication Department****

****N.A.S.P.D.C.P****